

# Abhishek Sharma vs Aditi Sharma on 12 June, 2019

**Author: Sureshwar Thakur**

**Bench: Sureshwar Thakur**

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA

CMPMO No. 24 of 2019

Decided on : 12.6.2019

Abhishek Sharma

...Petitioner

Versus

Aditi Sharma

...Respondent

-----  
Coram

Hon'ble Mr. Justice Sureshwar Thakur, Judge.  
Whether approved for reporting? yes  
-----

For the petitioner :                      Mr.    B.M.    Chauhan,    Senior  
                                                                                 Advocate with Mr. Amit Himalvi,  
                                                                                 Advocate.

For the respondents:                      Mr. B.C. Negi, Senior Advocate  
                                                                                 with Mr. Nitin Thakur, Advocate.

Sureshwar Thakur, Judge (oral)

During the pendency of the Hindu Marriage petition No. 265 of 2016, titled as "Abhishek Sharma versus Aditi Sharma", an application cast, under the provisions of Section 24 of Hindu Marriage Act, was preferred therebefore, by the legally wedded spouse of the respondent herein, one Abhishek Sharma.

2. In the afore application, she, had claimed the hereinafter extracted relief(s):

i) a sum of Rs. 20,000/- (Rupees Twenty Thousand only) as applicant's expenses of proceedings.

ii) a sum of Rs. 10,000/- (Rupees Ten Thousand only) as expenses for traveling from Nahan to Dharamshala alongwith one attendant to stay in Hotel for a period of three days for facing the proceedings on each date of hearing before the Hon'ble Court.

.

iii) a sum of Rs. 15,000/- (Rupees Fifteen thousands only) monthly for applicant maintenance during the proceedings.

3. The validity of the afore claim was contested, by her husband, by his, instituting a reply thereto, (a) wherein he contended that his legally wedded spouse is drawing a per-

mensem fellowship of

Rs. 25,000/- + 5,000/- ,

avocation, as Junior Research Fellow in school of Public Health under P.G.I., Chandigarh. The afore contention remained un-

from, her refuted by the respondent herein, by his instituting any rejoinder thereto. Hence, the afore factum acquires some force and tenacity.

4. The learned Additional District Judge, (1), Kangra at Dharamshala, in the impugned order, while bearing in mind the afore facet, vis-à-vis, the salary drawn by, the petitioner herein, and, vis-à-vis, the fellowship, drawn by the respondent herein from her afore avocation, (i) hence thereafter proceeded to draw a conclusion, qua the petitioner herein, neglecting to maintain the applicant, his legally wedded wife, (ii) and proceeded to compute the per-mensem maintenance pendente-lite, in a sum of Rs. 10,000/-, and, also awarded, vis-à-vis, the respondent herein, a sum of Rs. 20,000/-, as litigation expenses. The later part of the verdict, remains un-assailed by the respondent, hence it

acquires conclusivity.

5. Be that as it may, while rendering the impugned order, the learned Additional District Judge (1), Kangra at .

Dharamshala, though, has borne in mind the afore pleaded uncontested factum, vis-à-vis, the fellowship drawn, by his legally wedded spouse, and, it being comprised in a sum of Rs.

25,000/- per-mensem. (ii) However, since the afore per-mensem quantum of fellowship, drawn by the respondent herein, prima-

facie, comprises, an income sufficient, for sustaining the respondent herein, (iii) and when the respondent herein, was enjoined to, in her application, cast under the provisions of Section 24 of the Hindu Marriage Act, also therein cast categorical averments, that, the afore quantum of per-mensem fellowship, drawn by her, from her afore avocation, while working as a Junior Research Fellow, in the school of Public Health under P.G.I., Chandigarh, is not sufficient for her support, (iv) yet hence the afore averment remained un-cast in the application, rather the respondent herein visibly concealed the afore factum, hence, the learned Additional District Judge, could not, prima-

facie, be constrained to conclude that a sum of Rs. 10,000/- per-

mensem, is the determinable amount towards the per-mensem maintenance pendent elite, vis-à-vis, the respondent herein.

6. In aftermath, with the learned Additional District Judge, (1), Kangra at Dharamshala, failing to bear in mind the, requisite statutory principles, cast in Section 24 of the Hindu Marriage Act,

(a) and also his being oblivious, to the necessity of the respondent herein, casting clear pleadings either, in the apposite application or in the rejoinder, furnished, to the reply meted to her application, by the petitioner herein, qua the afore income .

drawn by her, being insufficient to sustain herself, (b) whereas the afore pleadings comprised, the, requisite factual strata, for, thereon the requisite statutory provisions, being aptly applied,

(c) besides also comprised factual strata, vis-à-vis, the afore income also not being sufficient to maintain herself, (d) consequently, wants thereof rather has stained the impugned verdict with a vice of gross non-application of mind, vis-à-vis, the statutory principles, governing the allowing or dis-allowing, of, an application filed, under, Section 24 of the Hindu Marriage Act.

7. In sequel, the impugned order is quashed, only vis-à-

vis, the assessment made by the learned Additional District Judge (1), Kangra at Dharamshala, vis-à-vis, the per-mensem maintenance pendente-lite, comprised, in a sum of Rs. 10,000/-.

However, the other part therein qua a sum of Rs. 20,000/-, working towards litigation expenses, is maintained and affirmed.

8. Nonetheless, for achieving the ultimate ends of justice, and, for enabling the respondent herein, to put-forth projection(s), vis-à-vis, the afore quantum of salary, not adequately working towards hers being sustained therefrom, (i) the matter is remanded to the learned Additional District Judge (1), Kangra at Dharamshala, (ii) to receive the respondents' evidence, qua the afore facet, and vis-à-vis, the afore evidence, the petitioner herein shall be granted an opportunity to adduce rebuttal evidence (iii) and after completion of the afore exercise, the learned Additional District Judge (1), Kangra at Dharamshala, is directed to, within four weeks, record a fresh decision, vis-à-

.

vis, the entitlement or dis-entitlement of the respondent herein, vis-à-vis, the per-mensem maintenance pendente lite, from, the petitioner herein. The amount, deposited, in the Registry of this Court, except a sum of Rs. 20,000/-, awarded, as litigation expenses, qua the respondent hererin, is directed to be released, vis-à-vis, the petitioner herein. The parties are directed to

9.

r to appear, before the learned Additional District Judge (1), Kangra at Dharamshala, on 8.7.2019.

Accordingly, the instant petition is disposed of. Also, the pending application(s), if any, are also disposed of. No costs.

(Sureshwar Thakur) Judge June 12, 2019 Kalpana